

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1284
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 9, chapter 4, article 6, Arizona Revised
3 Statutes, is amended by adding section 9-461.21, to read:

4 9-461.21. Private permitting providers; building permits;
5 certificates of completion; liability insurance;
6 code and fee publication; registration; nuisance
7 removal; prohibition; powers; definitions

8 A. FOR ANY SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT, A
9 PROPERTY OWNER OR A PROPERTY OWNER'S CONTRACTOR OR AGENT MAY ELECT TO USE
10 A PRIVATE PERMITTING PROVIDER TO CONDUCT A BUILDING PLAN REVIEW OR
11 INSPECTION WITHOUT APPROVAL FROM THE MUNICIPALITY. IF A PROPERTY OWNER OR
12 A PROPERTY OWNER'S CONTRACTOR OR AGENT ELECTS TO USE A PRIVATE PERMITTING
13 PROVIDER TO CONDUCT A BUILDING PLAN REVIEW FOR A SINGLE-TRADE RESIDENTIAL
14 CONSTRUCTION PROJECT, THE MUNICIPALITY MAY REQUIRE THAT THE PROPERTY OWNER
15 OR THE PROPERTY OWNER'S CONTRACTOR OR AGENT ALSO USE A PRIVATE PERMITTING
16 PROVIDER TO CONDUCT THE INSPECTION OF THAT SINGLE-TRADE RESIDENTIAL
17 CONSTRUCTION PROJECT.

18 B. ON COMPLETION OF A BUILDING PLAN REVIEW FOR A SINGLE-TRADE
19 RESIDENTIAL CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER HAS
20 DETERMINED THAT THE BUILDING PLAN COMPLIES WITH APPLICABLE BUILDING CODES,
21 THE PRIVATE PERMITTING PROVIDER SHALL NOTIFY THE MUNICIPALITY OF THE
22 BUILDING PLAN'S COMPLIANCE. THE MUNICIPALITY SHALL ISSUE THE BUILDING
23 PERMIT NOT LATER THAN THE THIRD BUSINESS DAY AFTER THE DATE THAT THE
24 PRIVATE PERMITTING PROVIDER NOTIFIED THE MUNICIPALITY OF THE BUILDING PLAN
25 COMPLIANCE. THE MUNICIPALITY MAY NOT REQUIRE THE PRIVATE PERMITTING
26 PROVIDER TO SUBMIT THE BUILDING PLAN TO THE MUNICIPALITY FOR REVIEW. THE
27 PROPERTY OWNER OR THE PROPERTY OWNER'S CONTRACTOR OR AGENT MAY BEGIN
28 CONSTRUCTING THE SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT ON THE
29 PRIVATE PERMITTING PROVIDER'S NOTIFICATION TO THE MUNICIPALITY OF THE
30 BUILDING PLAN'S COMPLIANCE.

31 C. ON COMPLETION OF AN INSPECTION OF A SINGLE-TRADE RESIDENTIAL
32 CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER DETERMINES THAT THE
33 SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT COMPLIES WITH THE BUILDING
34 PERMIT APPLICATION AND ALL APPLICABLE BUILDING CODES, THE PRIVATE
35 PERMITTING PROVIDER SHALL ISSUE A PRIVATE CERTIFICATE OF COMPLETION. THE
36 PRIVATE PERMITTING PROVIDER MAY USE PHOTOGRAPHS, RECORDED VIDEOS OR LIVE
37 VIDEO STREAMS TO CONDUCT THE INSPECTION. THE PRIVATE PERMITTING PROVIDER
38 SHALL SUBMIT A COPY OF THE PRIVATE CERTIFICATE OF COMPLETION TO THE
39 MUNICIPALITY WITHIN FORTY-EIGHT HOURS AFTER ISSUING THE PRIVATE

1 CERTIFICATE OF COMPLETION. A PRIVATE CERTIFICATE OF COMPLETION HAS THE
2 SAME VALIDITY AS A CERTIFICATE OF COMPLETION THAT IS ISSUED BY A
3 MUNICIPALITY. A MUNICIPALITY MAY TRACK A PRIVATE CERTIFICATE OF
4 COMPLETION IN THE SAME MANNER AS A CERTIFICATE OF COMPLETION THAT IS
5 ISSUED BY THE MUNICIPALITY.

6 D. A MUNICIPALITY MAY NOT TAKE ANY DISCRIMINATORY ACTION AGAINST A
7 PROPERTY OWNER OR A PROPERTY OWNER'S CONTRACTOR OR AGENT FOR USING A
8 PRIVATE PERMITTING PROVIDER, INCLUDING IMPOSING FEES THAT ARE MORE THAN
9 THE FEES THAT WOULD BE IMPOSED IF A PRIVATE PERMITTING PROVIDER WAS NOT
10 USED TO CONDUCT A BUILDING PLAN REVIEW OR AN INSPECTION.

11 E. A PRIVATE PERMITTING PROVIDER SHALL MAINTAIN APPLICABLE
12 PROFESSIONAL LIABILITY INSURANCE IN THE AMOUNT ESTABLISHED BY THE PRIVATE
13 PERMITTING PROVIDER'S REGISTRATION OR CERTIFICATION REGULATIONS.

14 F. A MUNICIPALITY SHALL POST ON THE MUNICIPALITY'S WEBSITE ALL
15 BUILDING CODES AND PERMITTING FEE SCHEDULES. IF A MUNICIPALITY DOES NOT
16 POST ALL BUILDING CODES AND PERMITTING FEE SCHEDULES ON THE MUNICIPALITY'S
17 WEBSITE, A PRIVATE PERMITTING PROVIDER MAY RELY ON APPLICABLE
18 INTERNATIONAL MODEL BUILDING SAFETY CODES TO DETERMINE CODE COMPLIANCE AND
19 TO CONDUCT AN INSPECTION. A MUNICIPALITY THAT HAS NOT POSTED ALL BUILDING
20 CODES AND PERMITTING FEE SCHEDULES ON THE MUNICIPALITY'S WEBSITE MAY NOT
21 CHARGE A PERMITTING FEE FOR A SINGLE-TRADE RESIDENTIAL CONSTRUCTION
22 PROJECT THAT IS PERMITTED OR INSPECTED PURSUANT TO THIS SECTION.

23 G. A MUNICIPALITY MAY MAINTAIN A REGISTRATION PROCESS TO VERIFY
24 THAT A PRIVATE PERMITTING PROVIDER MEETS THE REQUIREMENTS OF THIS SECTION.
25 IF A MUNICIPALITY MAINTAINS A REGISTRATION PROCESS PURSUANT TO THIS
26 SUBSECTION, THE MUNICIPALITY SHALL POST ON THE MUNICIPALITY'S WEBSITE A
27 LIST OF PRIVATE PERMITTING PROVIDERS THAT ARE REGISTERED THROUGH THE
28 MUNICIPALITY'S REGISTRATION PROCESS. IF A MUNICIPALITY MAINTAINS A
29 REGISTRATION PROCESS, A PRIVATE PERMITTING PROVIDER THAT IS INCLUDED IN
30 THE MUNICIPALITY'S POSTED LIST OF REGISTERED PRIVATE PERMITTING PROVIDERS
31 OR THAT IS REGISTERED THROUGH ANOTHER MUNICIPALITY OR COUNTY SHALL BE
32 AVAILABLE TO PERFORM A BUILDING PLAN REVIEW OR INSPECTION.

33 H. NOTWITHSTANDING SUBSECTION G OF THIS SECTION, A MUNICIPALITY
34 THAT HAS ABATED OR REMOVED A NUISANCE THAT WAS THE SUBJECT OF A BUILDING
35 PLAN REVIEW OR INSPECTION THAT WAS CONDUCTED BY A PRIVATE PERMITTING
36 PROVIDER PURSUANT TO THIS SECTION MAY PROHIBIT THAT PRIVATE PERMITTING
37 PROVIDER FROM CONDUCTING BUILDING PLAN REVIEWS OR INSPECTIONS IN THAT
38 MUNICIPALITY. A PRIVATE PERMITTING PROVIDER THAT IS PROHIBITED FROM
39 CONDUCTING BUILDING PLAN REVIEWS OR INSPECTIONS PURSUANT TO THIS
40 SUBSECTION MAY APPEAL THE PROHIBITION TO THE GOVERNING BODY OF THE
41 MUNICIPALITY. AT THE PRIVATE PERMITTING PROVIDER'S REQUEST, THE
42 MUNICIPALITY SHALL PROVIDE THE PRIVATE PERMITTING PROVIDER WITH A METHOD
43 TO REMOVE THE PROHIBITION.

44 I. THIS SECTION DOES NOT LIMIT OR AFFECT A MUNICIPALITY'S ABILITY
45 TO DEFINE, ABATE OR REMOVE NUISANCES AND PUNISH PERSONS COMMITTING
46 NUISANCES PURSUANT TO SECTION 9-240, SUBSECTION B, PARAGRAPH 21,
47 SUBDIVISION (a).

1 J. THIS SECTION DOES NOT PRECLUDE A MUNICIPALITY FROM IMPOSING
2 PERMIT FEES TO RECOVER THE DIRECT AND INDIRECT COSTS OF ISSUING A BUILDING
3 PERMIT.

4 K. A MUNICIPALITY THAT ISSUES A PERMIT, APPROVAL OR CERTIFICATE OF
5 OCCUPANCY AFTER A PLAN REVIEW OR INSPECTION THAT IS CONDUCTED BY A PRIVATE
6 PERMITTING PROVIDER PURSUANT TO THIS SECTION SHALL HAVE THE IMMUNITY
7 PRESCRIBED IN SECTIONS 12-820.01 AND 12-820.02.

8 L. A PRIVATE PERMITTING PROVIDER MAY ONLY CONDUCT A BUILDING PLAN
9 REVIEW OR AN INSPECTION PURSUANT TO THIS SECTION THAT IS WITHIN THE
10 DISCIPLINE THAT IS COVERED BY THE PRIVATE PERMITTING PROVIDER'S
11 REGISTRATION OR CERTIFICATION REGULATIONS.

12 M. FOR THE PURPOSES OF THIS SECTION:

13 1. "BUILDING CODE" INCLUDES:

14 (a) PLUMBING AND MECHANICAL CODES.

15 (b) ELECTRIC CODES.

16 (c) RESIDENTIAL CONSTRUCTION CODES.

17 (d) ENERGY CONSERVATION CODES.

18 (e) ZONING AND PLANNING CODES.

19 (f) BUILDING CONSTRUCTION CODES.

20 (g) PROPERTY MAINTENANCE CODES.

21 (h) ANTIBLIGHT CODES.

22 2. "PRIVATE CERTIFICATE OF COMPLETION" MEANS A CERTIFICATE OF
23 COMPLETION THAT IS ISSUED BY A PRIVATE PERMITTING PROVIDER.

24 3. "PRIVATE PERMITTING PROVIDER" MEANS EITHER OF THE FOLLOWING:

25 (a) A PERSON OR FIRM THAT IS REGISTERED PURSUANT TO TITLE 32,
26 CHAPTER 1 TO PRACTICE ARCHITECTURE OR ENGINEERING.

27 (b) AN INSPECTOR OR PLANS EXAMINER WHO IS CERTIFIED BY AN
28 ORGANIZATION THAT DEVELOPS MODEL CODES AND STANDARDS FOR BUILDING SAFETY
29 OR BY A NATIONAL PROFESSIONAL ELECTRICAL TRADE ASSOCIATION.

30 4. "SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT":

31 (a) MEANS ANY CONSTRUCTION PROJECT ON THE PROPERTY OF A
32 SINGLE-FAMILY OR MULTIFAMILY RESIDENTIAL DWELLING UNIT THAT REQUIRES A
33 BUILDING PERMIT AND THAT IS LIMITED TO A SINGLE CONSTRUCTION DISCIPLINE.

34 (b) INCLUDES ERECTING, INSTALLING, ENLARGING, ALTERING, REPAIRING,
35 REMOVING, CONVERTING OR REPLACING ANY OF THE FOLLOWING:

36 (i) A SINGLE UTILITY SYSTEM.

37 (ii) A HEATING, VENTILATION OR AIR CONDITIONING SYSTEM.

38 (iii) A WATER HEATER OR WATER-TREATMENT APPLIANCE.

39 (iv) A SOLAR PHOTOVOLTAIC SYSTEM, A SOLAR THERMAL SYSTEM, AN ENERGY
40 STORAGE SYSTEM OR A COMBINATION.

41 (v) ROOFING.

42 (vi) EXTERIOR OPENINGS.

43 (vii) STUCCO, PLASTER OR SIDING.

44 (viii) FENCING.

1 Sec. 2. Title 11, chapter 6, article 1, Arizona Revised Statutes,
2 is amended by adding section 11-810.02, to read:

3 11-810.02. Private permitting providers: building permits;
4 certificates of completion; liability insurance;
5 code and fee publication; registration; nuisance
6 removal; prohibition; powers; definitions

7 A. FOR ANY SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT, A
8 PROPERTY OWNER OR A PROPERTY OWNER'S CONTRACTOR OR AGENT MAY ELECT TO USE
9 A PRIVATE PERMITTING PROVIDER TO CONDUCT A BUILDING PLAN REVIEW OR
10 INSPECTION WITHOUT APPROVAL FROM THE COUNTY. IF A PROPERTY OWNER OR A
11 PROPERTY OWNER'S CONTRACTOR OR AGENT ELECTS TO USE A PRIVATE PERMITTING
12 PROVIDER TO CONDUCT A BUILDING PLAN REVIEW FOR A SINGLE-TRADE RESIDENTIAL
13 CONSTRUCTION PROJECT, THE COUNTY MAY REQUIRE THAT THE PROPERTY OWNER OR
14 THE PROPERTY OWNER'S CONTRACTOR OR AGENT ALSO USE A PRIVATE PERMITTING
15 PROVIDER TO CONDUCT THE INSPECTION OF THAT SINGLE-TRADE RESIDENTIAL
16 CONSTRUCTION PROJECT.

17 B. ON COMPLETION OF A BUILDING PLAN REVIEW FOR A SINGLE-TRADE
18 RESIDENTIAL CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER HAS
19 DETERMINED THAT THE BUILDING PLAN COMPLIES WITH APPLICABLE BUILDING CODES,
20 THE PRIVATE PERMITTING PROVIDER SHALL NOTIFY THE COUNTY OF THE BUILDING
21 PLAN'S COMPLIANCE. THE COUNTY SHALL ISSUE THE BUILDING PERMIT NOT LATER
22 THAN THE THIRD BUSINESS DAY AFTER THE DATE THAT THE PRIVATE PERMITTING
23 PROVIDER NOTIFIED THE COUNTY OF THE BUILDING PLAN COMPLIANCE. THE COUNTY
24 MAY NOT REQUIRE THE PRIVATE PERMITTING PROVIDER TO SUBMIT THE BUILDING
25 PLAN TO THE COUNTY FOR REVIEW. THE PROPERTY OWNER OR THE PROPERTY OWNER'S
26 CONTRACTOR OR AGENT MAY BEGIN CONSTRUCTING THE SINGLE-TRADE RESIDENTIAL
27 CONSTRUCTION PROJECT ON THE PRIVATE PERMITTING PROVIDER'S NOTIFICATION TO
28 THE COUNTY OF THE BUILDING PLAN'S COMPLIANCE.

29 C. ON COMPLETION OF AN INSPECTION OF A SINGLE-TRADE RESIDENTIAL
30 CONSTRUCTION PROJECT, IF A PRIVATE PERMITTING PROVIDER DETERMINES THAT THE
31 SINGLE-TRADE RESIDENTIAL CONSTRUCTION PROJECT COMPLIES WITH THE BUILDING
32 PERMIT APPLICATION AND ALL APPLICABLE BUILDING CODES, THE PRIVATE
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35 VIDEO STREAMS TO CONDUCT THE INSPECTION. THE PRIVATE PERMITTING PROVIDER
36 SHALL SUBMIT A COPY OF THE PRIVATE CERTIFICATE OF COMPLETION TO THE COUNTY
37 WITHIN FORTY-EIGHT HOURS AFTER ISSUING THE PRIVATE CERTIFICATE OF
38 COMPLETION. A PRIVATE CERTIFICATE OF COMPLETION HAS THE SAME VALIDITY AS
39 A CERTIFICATE OF COMPLETION THAT IS ISSUED BY A COUNTY. A COUNTY MAY
40 TRACK A PRIVATE CERTIFICATE OF COMPLETION IN THE SAME MANNER AS A
41 CERTIFICATE OF COMPLETION THAT IS ISSUED BY THE COUNTY.

42 D. A COUNTY MAY NOT TAKE ANY DISCRIMINATORY ACTION AGAINST A
43 PROPERTY OWNER OR A PROPERTY OWNER'S CONTRACTOR OR AGENT FOR USING A
44 PRIVATE PERMITTING PROVIDER, INCLUDING IMPOSING FEES THAT ARE MORE THAN
45 THE FEES THAT WOULD BE IMPOSED IF A PRIVATE PERMITTING PROVIDER WAS NOT
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47 E. A PRIVATE PERMITTING PROVIDER SHALL MAINTAIN APPLICABLE
48 PROFESSIONAL LIABILITY INSURANCE IN THE AMOUNT ESTABLISHED BY THE PRIVATE
49 PERMITTING PROVIDER'S REGISTRATION OR CERTIFICATION REGULATIONS.

1 F. A COUNTY SHALL POST ON THE COUNTY'S WEBSITE ALL BUILDING CODES
2 AND PERMITTING FEE SCHEDULES. IF A COUNTY DOES NOT POST ALL BUILDING
3 CODES AND PERMITTING FEE SCHEDULES ON THE COUNTY'S WEBSITE, A PRIVATE
4 PERMITTING PROVIDER MAY RELY ON APPLICABLE INTERNATIONAL MODEL BUILDING
5 SAFETY CODES TO DETERMINE CODE COMPLIANCE AND TO CONDUCT AN INSPECTION. A
6 COUNTY THAT HAS NOT POSTED ALL BUILDING CODES AND PERMITTING FEE SCHEDULES
7 ON THE COUNTY'S WEBSITE MAY NOT CHARGE A PERMITTING FEE FOR A SINGLE-TRADE
8 RESIDENTIAL CONSTRUCTION PROJECT THAT IS PERMITTED OR INSPECTED PURSUANT
9 TO THIS SECTION.

10 G. A COUNTY MAY MAINTAIN A REGISTRATION PROCESS TO VERIFY THAT A
11 PRIVATE PERMITTING PROVIDER MEETS THE REQUIREMENTS OF THIS SECTION. IF A
12 COUNTY MAINTAINS A REGISTRATION PROCESS PURSUANT TO THIS SUBSECTION, THE
13 COUNTY SHALL POST ON THE COUNTY'S WEBSITE A LIST OF PRIVATE PERMITTING
14 PROVIDERS THAT ARE REGISTERED THROUGH THE COUNTY'S REGISTRATION
15 PROCESS. IF A COUNTY MAINTAINS A REGISTRATION PROCESS, A PRIVATE
16 PERMITTING PROVIDER THAT IS INCLUDED IN THE COUNTY'S POSTED LIST OF
17 REGISTERED PRIVATE PERMITTING PROVIDERS OR THAT IS REGISTERED THROUGH
18 ANOTHER MUNICIPALITY OR COUNTY SHALL BE AVAILABLE TO PERFORM A BUILDING
19 PLAN REVIEW OR INSPECTION.

20 H. NOTWITHSTANDING SUBSECTION G OF THIS SECTION, A COUNTY THAT HAS
21 ABATED OR REMOVED A NUISANCE THAT WAS THE SUBJECT OF A BUILDING PLAN
22 REVIEW OR INSPECTION THAT WAS CONDUCTED BY A PRIVATE PERMITTING PROVIDER
23 PURSUANT TO THIS SECTION MAY PROHIBIT THAT PRIVATE PERMITTING PROVIDER
24 FROM CONDUCTING BUILDING PLAN REVIEWS OR INSPECTIONS IN THAT COUNTY. A
25 PRIVATE PERMITTING PROVIDER THAT IS PROHIBITED FROM CONDUCTING BUILDING
26 PLAN REVIEWS OR INSPECTIONS PURSUANT TO THIS SUBSECTION MAY APPEAL THE
27 PROHIBITION TO THE GOVERNING BODY OF THE COUNTY. AT THE PRIVATE
28 PERMITTING PROVIDER'S REQUEST, THE COUNTY SHALL PROVIDE THE PRIVATE
29 PERMITTING PROVIDER WITH A METHOD TO REMOVE THE PROHIBITION.

30 I. THIS SECTION DOES NOT LIMIT OR AFFECT A COUNTY'S ABILITY TO
31 DEFINE, ABATE OR REMOVE NUISANCES AND PUNISH PERSONS COMMITTING NUISANCES
32 PURSUANT TO SECTION 11-268.

33 J. THIS SECTION DOES NOT PRECLUDE A COUNTY FROM IMPOSING PERMIT
34 FEES TO RECOVER THE DIRECT AND INDIRECT COSTS OF ISSUING A BUILDING
35 PERMIT.

36 K. A COUNTY THAT ISSUES A PERMIT, APPROVAL OR CERTIFICATE OF
37 OCCUPANCY AFTER A PLAN REVIEW OR INSPECTION THAT IS CONDUCTED BY A PRIVATE
38 PERMITTING PROVIDER PURSUANT TO THIS SECTION SHALL HAVE THE IMMUNITY
39 PRESCRIBED IN SECTIONS 12-820.01 AND 12-820.02.

40 L. A PRIVATE PERMITTING PROVIDER MAY ONLY CONDUCT A BUILDING PLAN
41 REVIEW OR AN INSPECTION PURSUANT TO THIS SECTION THAT IS WITHIN THE
42 DISCIPLINE THAT IS COVERED BY THE PRIVATE PERMITTING PROVIDER'S
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45 1. "BUILDING CODE" INCLUDES:

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22 (iv) A SOLAR PHOTOVOLTAIC SYSTEM, A SOLAR THERMAL SYSTEM, AN ENERGY
23 STORAGE SYSTEM OR A COMBINATION.
24 (v) ROOFING.
25 (vi) EXTERIOR OPENINGS.
26 (vii) STUCCO, PLASTER OR SIDING.
27 (viii) FENCING."
28 Amend title to conform

WALT BLACKMAN

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